

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Julie Chang	Team: Team # 2	CCRB Case #: 200205039	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 06/30/2002 11:55 AM	Location of Incident: N/A Bowery & Chatham Square	18 Mo. SOL 12/30/2003	Precinct: 05		
Date/Time CV Reported Wed, 07/24/2002 12:45 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 07/29/2002 9:01 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POF Kendra Herrera	31788	926948	005 Precinct
2. POM Andrew Buck	15437	927983	005 Precinct

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Pamela Bond	09478	926586	005 Precinct

Officer(s)	Allegation	Investigator Recommendation
A . POF Kendra Herrera	Discourtesy: PO Kendra Herrera acted rudely toward § 87(2)(b)	A . Unfounded
B . POM Andrew Buck	Abuse of Authority: PO Andrew Buck threatened § 87(2)(b) with a summons.	B . Exonerated
C . POF Kendra Herrera	Other: PO Kendra Herrera intentionally made a false official statement when she said she never raised her voice when speaking to § 87(2)(b)	C . Other Misconduct

Synopsis

On June 30, 2002 at 11:55 am, § 87(2)(b) and his wife, § 87(2)(b) § 87(2)(b) were stopped at a red light at the intersection of Bowery Street and Chatham Square when his car was bumped from behind by PO Herrera in RMP #1824. Neither § 87(2)(b)'s vehicle nor RMP #1824 sustained any damages. When § 87(2)(b) exited his car to check for damages, PO Herrera also exited her vehicle. According to § 87(2)(b) PO Herrera acted rudely towards him during their interaction. PO Buck, working foot patrol at the time, approached the two parties and threatened § 87(2)(b) with a summons if he did not get back into his vehicle and drive away. § 87(2)(b) rejected mediating this complaint § 87(2)(b).

§ 87(2)(g). § 87(2)(g) it is recommended that the allegation against PO Herrera for discourtesy be unfounded. In regards to the allegation of abuse of authority against PO Buck, it is recommended that it also be closed with an exonerated disposition § 87(2)(g).

On November 15, 2002, Panel 10D-2002 recommended that PO Kendra Herrera be cited for making a false official statement when she claimed that she never raised her voice when speaking to § 87(2)(b).

Summary of Complaint

§ 87(2)(b) a § 87(2)(b) Asian male, § 87(2)(b) § 87(2)(b)'s initial complaint that was e-mailed to IAB 3 weeks after the incident on July 24, 2002 § 87(2)(g).

Travelling on Bowery Street in Manhattan with his wife § 87(2)(b) § 87(2)(b) in the passenger seat, § 87(2)(b) came to a stop behind one or two other vehicles at a red light at the intersection of Bowery and Chatham Square. His vehicle was subsequently bumped by a marked police car: RMP # 1824, driven by PO Herrera with her partner PO Bond in the passenger seat. § 87(2)(b) described the bump as “not too hard” although he and § 87(2)(b) jerked forward slightly in their seats. There was no damage done to either of the two vehicles.

“Like any normal person would do”, § 87(2)(b) exited his vehicle to check the bumper for any damages. At this time, PO Herrera exited her vehicle, approached § 87(2)(b) and asked him why he got out of his car. § 87(2)(b) stated that he was just checking to see that there was no damage to his bumper. PO Herrera replied rather illogically in § 87(2)(b)'s opinion, “If they cars had bumped, they would be attached together”. PO Herrera yelled at § 87(2)(b) telling him that she didn’t bump his car, nor were there any damages and that he should return to his car. § 87(2)(b) never had any contact with PO Bond and believed that she never exited the RMP.

Within 1-3 minutes, PO Buck came over to the two parties from across the street. § 87(2)(b) observed that PO Buck had been patrolling the street fair going on in the area. PO Buck and PO Herrera exchanged a few words which § 87(2)(b) did not hear, and then PO Buck also ordered § 87(2)(b) to get back into his car. PO Buck then threatened § 87(2)(b) with a ticket for blocking traffic. As PO Buck walked past § 87(2)(b)'s open driver side door, he said with a smile, “I think I smell weed in your car.” § 87(2)(b) did not respond to this accusation. When asked if there was any marijuana in his car or if he and his wife had used any marijuana that day, § 87(2)(b) replied no. PO Herrera did not say anything regarding this comment.

PO Buck then told § 87(2)(b) that if he had a problem, he could go make a complaint. § 87(2)(b) took out a pen and piece of paper from his car to record PO Herrera’s and PO Buck’s names and badge numbers. § 87(2)(b) then returned to his car and left the scene. The incident lasted about 5 minutes.

In both his interview and letter to IAB, § 87(2)(b) emphasized the point that if the subject officers could act so unprofessionally in “such a small incident”, then they could hardly be trusted in more important matters.

Results of Investigation

Civilian Statement

§ 87(2)(b) § 87(2)(b)
§ 87(2)(b) § 87(2)(b) a § 87(2)(b) Asian female § 87(2)(b)
§ 87(2)(g) § 87(2)(b) was interviewed on August 13, 2002 at the CCRB (enc. 5A-D).

When § 87(2)(b) walked to the back of the car to check for damages, PO Buck approached the passenger side of the car where § 87(2)(b) was seated and asked if she was OK. § 87(2)(b) affirmed that she was fine.

Because § 87(2)(b) had left the driver's side door slightly open as he exited and because the window was open, § 87(2)(b) could overhear some of the exchange between § 87(2)(b) and PO Herrera. § 87(2)(b) asked PO Herrera what was going on and informed her that she had bumped his car. PO Herrera responded by asking him, "Do you see a car sticking to your car?" § 87(2)(b) heard § 87(2)(b) say repeatedly, "You bumped my car, aren't you going to apologize?" PO Herrera replied no and the two parties "kept going back and forth."

When the traffic light turned green, PO Herrera screamed at § 87(2)(b) and ordered him to return to his car or else, he would be given a ticket for blocking traffic. § 87(2)(b) repeated loudly, "I'm going to report this" to which PO Herrera responded, "Go ahead, do whatever you like". § 87(2)(b) retrieved a pen and piece of paper from his backseat and proceeded to record the officers' name and badge numbers. When he asked PO Buck for his name and badge number, PO Buck asked him "Why are you dragging me into this? I didn't see anything." § 87(2)(b) intended to use PO Buck as a witness and copied down his information.

§ 87(2)(b) said, "I'm going to report this," as he walked back to his car. When he and § 87(2)(b) were both inside the car and about to leave, PO Buck knocked on the driver's side window and asked, "What did you say to me?" § 87(2)(b) replied that he did not say anything to him. Then PO Buck suggested that he smelled weed in their car. § 87(2)(b) ignored his comments and denies using or possessing marijuana. The incident lasted about five minutes.

§ 87(2)(b) stated candidly that her husband was loud and that his tone during the incident was "not too nice".

Officer Statements

PO Herrera

PO Kendra Herrera was interviewed at the CCRB on August 20, 2002 (enc.6A-F). She was on patrol with her partner, PO Bond, travelling southbound in the middle lane of Bowery Street on June 30, 2002 at approximately 12:00pm. PO Herrera was driving RMP #1824 when she came to a stop behind § 87(2)(b)'s vehicle at the intersection of Bowery and Chatham Square. She was uncertain about the amount of traffic during that time and denied bumping § 87(2)(b)'s vehicle.

§ 87(2)(b) exited his vehicle, leaving the driver's side door open and approached the RMP before checking for damage on his bumper. He yelled at PO Herrera, who was also out of her RMP at this point, "You fucking just hit my car." PO Herrera responded, "Sir, I didn't touch your car. As you can see, there's no touching of the car." PO Herrera described § 87(2)(b) as looking "very mad" as he continued yelling and pointing his finger in her face, "Give me your name and shield number. You fucking police think you can do whatever you want." PO Herrera stated that she felt nervous and took a few steps back. PO Herrera claimed that she did not ever raise her voice to assert herself, nor did she tell § 87(2)(b) to return to his car. Her partner, PO Bond never stepped out of the car.

About 2-3 minutes later, PO Buck jogged over and stood by PO Herrera. Before exchanging any words with PO Herrera, PO Buck ordered § 87(2)(b) to "get back" and to "step back inside of the car or you will be

issued a summons for obstructing traffic. § 87(2)(b) accused PO Buck of trying to intimidate him and proceeded to ask for his name and shield number.

PO Herrera did not recall if anyone was in the car with § 87(2)(b) or if the light turned green during the 5-minute incident. PO Herrera did not hear if PO Buck said, "I smell weed in your car" but believes that § 87(2)(b) was not high or intoxicated.

PO Buck

PO Buck, interviewed at the CCRB on August 21, 2002, stated that he was in uniform working foot patrol on Bowery Street, preparing for a Chinese parade on June 30, 2002 around noon time (enc.7A-E). An hour before the incident, PO Buck had been walking back and forth taking care of parking and keeping the street clean.

The streets were very busy and the two lane roads on both sides of the street were active. PO Buck saw PO Herrera driving towards him and waved at her. He returned to his duties and about 20 seconds later, he looked around and saw PO Herrera stopped in the middle of the street. PO Buck witnessed § 87(2)(b) get out of his car "vigorously" and approach PO Herrera's vehicle. Because one cannot approach an RMP while the officers are still inside, PO Buck decided to go over to them.

PO Buck stated that he did not see PO Herrera bump § 87(2)(b)'s car and also denied asking the passenger, § 87(2)(b) if she was alright. His intention behind going over to the scene was to "see what the driver was yelling about". PO Buck stated that § 87(2)(b) looked "threatening" and "angry", making "what's going on" gestures with his arms and hands. § 87(2)(b) was rude and loud and he and PO Herrera had to "adjust their tones to match his". PO Buck does not remember § 87(2)(b) cursing or telling the officers to apologize.

Both he and PO Herrera ordered § 87(2)(b) to get back into his car many times because he was blocking an active street and forcing other drivers to go around his vehicle. PO Buck recalled that the light had turned green "many times". Later, PO Buck threatened to give § 87(2)(b) a summons if he did not move his car. When asked what the summons would have been written for, PO Buck was not completely sure initially, but then settled on the probability of giving § 87(2)(b) a parking summons. PO Buck did not notice PO Herrera's partner or § 87(2)(b). He denied mentioning anything about § 87(2)(b)'s car smelling like marijuana.

§ 87(2)(b) finally returned to his vehicle and drove away when he copied down the name and badge number of PO Herrera and PO Buck. PO Buck was confused that § 87(2)(b) wanted to copy down his information to be a witness because "that's crazy", he "didn't see anything".

PO Bond

PO Bond was interviewed on August 27, 2002 (enc.8A-E). On June 30, 2002 around noon, she and PO Herrera were travelling down Bowery in very congested traffic. PO Bond noticed PO Buck but does not recall whether or not he waved at PO Herrera.

They stopped at a red light and § 87(2)(b) suddenly exited his sedan and walked over to the driver's side of the RMP. PO Bond stated that she did not feel their vehicle bump § 87(2)(b)'s vehicle. PO Herrera exited the car while PO Bond remained seated inside. A few seconds later, PO Buck walked over to the trunk of § 87(2)(b)'s vehicle where PO Herrera and § 87(2)(b) were talking. PO Bond did not see PO Buck first talk to the passenger in § 87(2)(b)'s vehicle. PO Bond stated that "it looked like things were getting loud" and she could hear § 87(2)(b) and PO Herrera yelling from inside the RMP. When asked to describe his demeanor, PO Bond stated that he looked unhappy and "erratic", making large hand movements. There seemed to be a 2ft. distance between the 3 parties. At this point, PO Bond also exited the car but stood by her door. When asked why she did not get out of the RMP initially, PO Bond responded that she "did not know what he wanted." Once outside, PO Bond heard § 87(2)(b) say something about "you cops". PO Bond stated that she heard both PO Buck and PO Herrera order § 87(2)(b) to move his car or else he would be issued a summons. The light had turned green since they had been talking and cars were maneuvering their way around § 87(2)(b)'s vehicle.

PO Bond did not hear PO Buck mention anything about smelling marijuana in § 87(2)(b)'s vehicle and stated that it was never an issue. § 87(2)(b) retrieved a pen from his car to copy down PO Buck's and PO Herrera's badge numbers before he drove away.

Documents

Memo book

PO Herrera recorded in her memo book (enc.6A-D): "about 1200 travel on Bowery S/B male states I rear end car I was a red light behind car. Male was very irate I check for damage no damage traffic bumper to bumper – male gets in my face & states you police think you can fuckin do whatever you want give me shield # partner never stepped out of car PO Buck on Bowery foot post jogged over & asked male to go inside car- cause he was obstructing traffic. Male Asian stepped he will not get into car then took PO Bucks Shield #. Boss not called no impact or damage to Male Asian car male Asian car was grey dark in above." [sic].

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Officer CCRB History

PO Herrera and PO Buck have no substantiated cases at CCRB (enc.2,3).

Conclusions and Recommendations

Officer Identification

PO Herrera and PO Buck were both identified when they gave their names and shield numbers at § 87(2)(b)'s request at the time of the incident. PO Herrera identified PO Bond as her partner in her CCRB interview.

Undisputed facts

All sources confirm that the incident occurred when § 87(2)(b)'s and PO Herrera's vehicles stopped at a red light at the intersection of Bowery and Chatham Square on June 30, 2002, around 12:00pm. Also undisputed is the fact that § 87(2)(b) PO Herrera and PO Buck engaged in a verbal dispute which resulted in § 87(2)(b) filing a complaint.

§ 87(2)(g)

Credibility

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

A) Discourtesy: PO Herrera acted rudely towards § 87(2)(b)

§ 87(2)(g)

Although PO Herrera denied raising her voice to § 87(2)(b) § 87(2)(b) PO Buck and PO Bond all stated otherwise. § 87(2)(g)

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] It is

therefore recommended that allegation A be closed with an unfounded disposition.

B) Abuse of Authority: PO Buck threatened § 87(2)(b) with a summons

PO Buck confirmed that he told § 87(2)(b) that he could be issued a summons for a traffic violation; in fact, he never did so. § 87(2)(g)

PO Herrera notes in her memo book that the traffic was “bumper to bumper” at the time of incident. That the street was congested was also confirmed by both PO Bond and PO Buck. Furthermore, § 87(2)(b) and PO Herrera agree that the incident lasted about 5 minutes § 87(2)(g)

§ 87(2)(g) it is recommended that PO Buck be exonerated § 87(2)(g) § 87(2)(g).

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: